



File No.: EXP202405322

RESOLUTION FOR TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 1, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A. (hereinafter, ATRESMEDIA), through the agreement that is transcribed:

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File No.: EXP202405322

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The Spanish Agency for Data Protection became aware of certain facts that could constitute a possible infringement attributable to ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A. with NIF A78839271 (hereinafter, ATRESMEDIA).

The facts brought to the attention of this authority were as follows:

Possible infringement in the processing of personal data related to the publication in a media outlet of a video containing violent content in which the voices of the aggressors and the victim can be heard.

SECOND: As a consequence of the known facts, on ***DATE.1, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate of Data Inspection (SGID) to initiate the preliminary investigation actions referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD).

THIRD: The SGID proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

As a result of the actions taken, the following aspects have been noted:

1) On ***DATE.1, the following verification carried out by this Agency was incorporated into the inspection actions:

- Publication of a news item illustrated with a video that reproduces the voices of several young people whose faces appear pixelated and in which one of them (...). The publication is located at ***URL.1 and, below the video, the following text appears: (...).

2) On ***DATE.2, a precautionary measure was sent to the data controller ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A. requesting the removal of the video or distortion of the voices of the participants—at least, there are 3 people: victim, physical aggressor, and the one recording—in question, locatable at the previously mentioned link.

3) On ***DATE.3, a written response was received from the responsible party ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A., confirming the removal of the video on ***DATE.2 and the preservation of the original as evidence.

FOURTH: According to the report collected from the AXESOR tool dated October 14, 2024, the entity ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A. is a large company established in 1988, which is part of the economic group "Atresmedia Corporación de Medios de Comunicación S.A.," and has more than 1,000 employees and a turnover of €698,710,610 in 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each control authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish

Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

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Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Once this period has elapsed, it shall expire, and consequently, the file shall be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

A person's voice, according to Article 4.1 of the GDPR, is a personal data as it makes them identifiable, and its protection is therefore the subject of said GDPR:

“‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person;”

The voice is a personal attribute unique and individual to each natural person, defined by its pitch, intensity, and timbre. Endowed with unique and distinctive traits that directly individualize it, associating it with a specific individual, it is shaped while speaking, allowing one to discern, through it, the age, sex, health status of the individual, their personality, culture, origin, hormonal, emotional, and psychological state. Elements of expression, idiolect, or intonation are also considered personal data when taken together with the voice.

Therefore, the report 139/2017 from the Legal Office of this Agency states that “the image, as well as the voice of a person, is personal data, just as any information that allows for the determination, directly or indirectly, of their identity will be (...)”

In fact, the Judgment of the National Court dated March 19, 2014 (rec. 176/2012) states that “the voice of a person constitutes personal data, just as...”

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as deduced from the definition provided by Article 3.a) of the LOPD, as <>, a matter that is not disputed.”

Regarding the personal data of a natural person's voice, it is verified that the four components indicated by Opinion 4/2007 of the Article 29 Working Party on the concept of personal data are present: any information concerning an identified or identifiable natural person.

The aforementioned Opinion 4/2007 determines that “a natural person can be considered ‘identified’ when, within a group of people, they can be ‘distinguished’ from all other members of the group.”

Through their voice, a natural person can be identified at least by those who are part of their closest

circle or who may know them in any way.

Furthermore, the voice also makes a natural person indirectly identifiable to a larger segment of the population if combined with other data, including additional information, depending on the context in question. Again, Opinion 4/2007 assesses that “In cases where, at first glance, the available identifiers do not allow for the singularization of a specific person, that person may still be ‘identifiable’ because that information combined with other data (whether the data controller is aware of them or not) will allow distinguishing that person from others.”

In this regard, Recital 26 of the GDPR states that “...To determine whether a natural person is identifiable, all means, such as singularization, that the data controller or any other person may reasonably use to identify the natural person directly or indirectly must be taken into account. To determine whether there is a reasonable likelihood that means will be used to identify a natural person, all objective factors must be considered, such as the costs and time required for identification, taking into account both the technology available at the time of processing and technological advancements...”

The reference to all information refers to the broad concept of what constitutes personal data, which requires a broad interpretation, in line with various rulings of the CJEU such as CJEU Judgment of May 4, 2023, in case C-487/21 or CJEU Judgment of June 22, 2023, in case C-579/21.

Article 4.2 of the GDPR defines “processing” as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction.”

In the present case, the inclusion of a person's voice in journalistic publications, which identifies or makes a person identifiable, constitutes processing of personal data and, therefore, the data controller carrying out such processing is obliged to comply with the obligations set forth for data controllers in the GDPR and in the LOPDGDD.

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ATRESMEDIA carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR, which defines “data controller” or “controller” as: “the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.”

IV

Right to data protection

This procedure is initiated because ATRESMEDIA published, at the web link referred to in the facts, a news article that was accompanied by a video featuring several minors (victim and aggressors) and one (...). While it is true that their faces were pixelated, the same did not occur with their voices — at least, from 3 individuals: the victim, the physical aggressor, and the one recording — as they were clearly audible; this constitutes a processing of personal data of the participants.

Having established the above, it is important to recall that individuals have the power of disposition over their personal data, including their voice, as well as over its dissemination, and undoubtedly, the person whose personal data is disseminated in violation of the legal order deserves protection.

Thus, the Constitutional Court ruling STC 292/2000, of November 30, states that “the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use.

These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses, by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the authority to know at all times who holds that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.”

The principles relating to processing are, on the one hand, the starting point and the closing clause of the legal framework for data protection, constituting true guiding rules of the system with a strong expansive force. On the other hand, due to their high level of specificity, they are mandatory norms that can be infringed.

More specifically, it is worth highlighting the principle set out in Article 5.1.c) of the GDPR, which establishes that:

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“1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (“data minimization”);”

Compliance with this principle requires, as a prerequisite, an assessment of the necessity and proportionality of the processing operations with respect to their purpose, taking into account whether the pursued purposes can be achieved or not in a less intrusive manner, as well as the risks to the protection of the rights and fundamental freedoms of individuals.

Article 5.1(c) of the GDPR relates to Recital 39 of the GDPR, which states that “...the specific purposes of the processing of personal data must be explicit and legitimate, and must be determined at the time of collection. Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. This requires, in particular, ensuring that their retention period is limited to a strict minimum. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means.”

As deduced from the aforementioned recital, this requirement of necessity is not met when the pursued objective can be reasonably achieved just as effectively by other means with less risk in relation to the rights and freedoms of the data subjects, particularly regarding the rights to respect for private life and the protection of personal data, guaranteed by Articles 7 and 8 of the Charter of Fundamental Rights of the EU, since exceptions and restrictions on the right to protection of such data must be established without exceeding the limits of what is strictly necessary (see, in this regard, the judgment of December 11, 2019, Asociația de Proprietari bloc M5A-ScaraA, C-708/18, EU:C:2019:1064, paragraphs 46 and 47).

In any case, the default or pre-set configuration must not include the collection of personal data that is not necessary for the specific purpose of the processing. In other words, if certain categories of personal data are unnecessary or if detailed data is not needed because less granular data is sufficient, then personal data should not be collected.

In this case, if another processing implementation could achieve the same objective and is available under the described terms or if it is not necessary to process personal data to achieve the same purpose, it may be preferable to refrain from processing such personal data, or to process them to a lesser extent and intensity of use, which would imply that it is not necessary to carry out any processing of data, and subsidiarily, that the collection of data is necessary for the established or intended purpose and if so, that it is proportional.

Article 5.1(c) of the GDPR reflects the principle of proportionality (see the judgment of 11/12/2019, Asociația de Proprietari bloc M5A-ScaraA, C-708/18, EU:C:2019:1064, paragraph 48), in the sense

that, if there are alternatives to achieve the same...

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intended purpose of the respondent, the least invasive option must be chosen. This principle is also related to the necessity of the processing, both principles that must be considered from the moment personal data is used, as it restricts rights and freedoms, such as the right to data protection, when processing that data, and in this case also the right to the dignity of the person who is slapped and of the minor.

V

Balance between the right to the protection of personal data and other fundamental rights and freedoms

However, the fundamental right to the protection of personal data is not absolute, since, when the case arises, it may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the fundamental right to freedom of information or expression, weighing this on a case-by-case basis.

In this regard, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully transferable to the current Article 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out.”

That said, the fundamental rights to freedom of information or expression are also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the right to honor, personal and family privacy, and one's own image.

Thus, we will cite the Supreme Court ruling 50/2017, First Civil Chamber, of January 27, 2017 (appeal 2139/2015) which states:

“In this sense, it is reiterated jurisprudence (see among the most recent, and as a doctrinal summary, the ruling 605/2015, of November 3) that the abstract prevalence of the freedoms of expression and information ‘can only be reversed in the specific case by considering the relative weight of honor and privacy according to the specific circumstances at hand, provided that the information and opinions disclosed refer to matters of general interest or public relevance (either by the persons or by the subject matter), that the communication does not involve the unnecessary use of unequivocally offensive or degrading expressions, and, in the case of freedom of information, provided that they are truthful, specifying in any case that in the area of protection of the right to privacy, the criterion for determining the legitimacy or illegitimacy of the intrusions is not that of truthfulness but that of the public relevance of the disclosed fact, that is, that its communication to the public, even if true, is necessary based on the public interest of the matter being reported” (the emphasis is ours).

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This is not about giving precedence to one fundamental right over another, but rather about finding a balance between both that allows for the reconciliation of both rights; a reconciliation to which the European legislator refers in Article 85 of the GDPR. One of the elements to be considered is, precisely, whether the intrusion—in the case at hand, the processing of the personal data of the voices of several young individuals—is necessary to achieve the intended purpose; in this specific case, with the publication of the news.

At this point, it is necessary to bring to mind the jurisprudence that analyzes the relationship between

freedom of information and expression, on one hand, and the rights of those affected by informational content.

Thus, the European Court of Human Rights (ECHR), in its judgment of June 19, 2012, issued in case 1593/2006, states the following:

Although the press must not exceed certain limits, particularly regarding the reputation and rights of others or the proper administration of justice, its duty is, nevertheless, to impart, in a manner consistent with its obligations and responsibilities, information and ideas on all matters of public interest (paragraph 48).

(...) The publication of photographs and articles whose sole purpose is to satisfy the curiosity of a particular reader regarding the details of the private life of a public figure cannot be considered to contribute to any debate of general interest to society, even though the person is known to the public. Under such conditions, freedom of expression requires a stricter interpretation (...). (paragraph 50) (emphasis added)

(...) When verifying whether the authorities have achieved a fair balance between two protected values guaranteed by the Convention that may conflict with each other in such cases—the freedom of expression protected by Article 10 and the right to respect for private life enshrined in Article 8—the Court of Justice must balance the public interest in the publication of information and the need to protect private life (see *Hachette Filipacchi Associés v. France*, no. 71111/01, § 43, ECHR 2007-VII). (Paragraph 51)

And it concludes that, since the parties affected by the news are not public figures, “the disclosure of their identity cannot be considered essential to understanding the details of the case (paragraph 57)” and that, “there is no doubt that the preservation of the most intimate sphere of the life of a minor who had become a victim of a custody dispute and had not entered the public sphere deserved particular protection due to their vulnerable position. (paragraph 59)” (emphasis added).

In this sense, and taking into account the circumstances of the analyzed case, in which personal data—the voices of several young individuals—have been disseminated as part of an informational content that ATRESMEDIA directs to its readers, it must be understood that the limits indicated by the jurisprudence regarding the necessary safeguarding of the fundamental rights of those affected are applicable.

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On the other hand, and being of interest in the case at hand, it is necessary to mention the ruling 27/2020, of February 24, issued by the Constitutional Court in its appeal 1379/2017, in which, after stating that “we must insist again that the physical aspect, as a basic instrument of identification and external projection and an essential factor for the very recognition as a person, constitutes the first element shaping the personal sphere of every individual (SSTC 156/2001, FJ 6 and 99/1994, FJ 5), concludes that ‘the first rule for achieving the protection of this fundamental right is that in order to capture, reproduce and/or publish the image of a person, their unequivocal consent is indispensable, being exceptional the cases in which such authorization is not required (...)’

At this point, it is appropriate to refer to the ruling 117/1994, of April 25 (RTC 1994\117), which now places that right to voice within the scope of the right to one’s own image by stating that ‘the right to one’s own image, recognized by art. 18.1 of the Constitution alongside those of honor and personal intimacy, is part of the rights of personality and as such guarantees the sphere of freedom of a person regarding their most characteristic, inherent, and immediate attributes such as physical image, voice, or name, defining qualities of the self and attributed as an inherent and irreducible possession to every person. To the extent that this freedom manifests itself in the physical world through the actions of their body and its qualities, it is evident that the protection of the image safeguards the sphere of intimacy and, at the same time, the power of decision regarding the purposes to which the manifestations of the person through their image, identity, or voice should be applied.’

Thus, the considerations made by jurisprudence regarding the own image of a natural person must be

extended to their voice, which is, as noted, a personal data.

Next, it reasons as follows:

“when the right to one’s own image collides with other goods or rights constitutionally protected, particularly the freedoms of expression and information (art. 20.1.a and d CE), the different conflicting interests must be weighed and, taking into account the specific circumstances of each case, decide which interest deserves greater protection” (SSTC 105/1990, of June 6; 72/2007, FJ 5 and 156/2001, FJ 6). (...) As can be easily deduced, this occurs not only in its confrontation with the rights to honor and intimacy but also with the fundamental right to one’s own image, for example, in those cases where photographs or video clips are disseminated in the information that can only be understood as mere instruments for satisfying external curiosity and have been included not with an informative function, but with the purpose of quenching the expectation that, in those terms, a certain news item may raise.

(...) the image of an anonymous or unknown individual, or in other words, one who does not hold a public office or a profession of notoriety, even if captured in a public place, cannot be used without their express consent, except in two cases. Firstly, in the case where the person appears in the photograph in a merely accessory and inconsequential manner, without any prominence. Secondly, in the case where participation in the newsworthy event of the C/ Jorge Juan, 6

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A person initially anonymous may become the main or protagonist figure, in which case their fundamental right to their image must yield to the right to information, precisely due to the non-accessory role that the subject themselves has assumed. (...) Although the risks of intrusion have increased exponentially with the massive use of social networks, to mitigate them we must continue to rely on the same basic principle that governs the analog environment and affirm that the constitutional recognition of the fundamental rights included in Article 18 of the Spanish Constitution entails the individual's power to control the data circulating on social networks that concern them. Consequently, we reiterate that, unless there is unequivocal authorization for the capture, reproduction, or publication of the image by its owner, the interference with the fundamental right to one’s own image must necessarily be justified by the prevailing public interest in accessing and disclosing it. (...) Consent only protects what constitutes the object of the declaration of will. The holder of the fundamental right must authorize the specific act of using their image and the purposes for which it is granted. The consent given, for example, for the capture of the image does not extend to other subsequent acts, such as its publication or dissemination.

Considering the above, and noting that there has been processing of personal data that constitutes an intrusion into the fundamental right to the protection of personal data of the participants whose voices are reproduced in the aforementioned video, it should be recalled that those affected by this violation were minors at the time of the events. In this regard, it should be noted some of the numerous judicial pronouncements that highlight the enhanced protection that should be afforded to minors against illegitimate intrusions into their fundamental rights.

Thus, as indicated by the Supreme Court, First Chamber, Civil, in its Judgment 1003/2008 of October 23, 2008 (Rec. 174/2005, Second Legal Ground):

“The Constitution, in its Article 18, generally recognizes the right to honor, to personal and family privacy, and to one’s own image, and in Article 20.1.d) the right to communicate or receive truthful information freely by any means of dissemination, specifying that this freedom finds its limit in respect for the rights recognized in this title and ‘especially in the right to honor, to privacy, to one’s own image, and to the protection of youth and childhood.’ In line with the above, the special protection that must be given to data relating to minors has been enshrined in the Organic Law 1/96, of January 15, on the Legal Protection of Minors.

In interpreting these fundamental rights, the Constitutional Court has pointed out that for the right to privacy to legitimately oppose the right to freedom of receiving or transmitting information, it is necessary that the disseminated news lacks public interest or that, even if it is of public interest, it lacks

truthfulness, since in a democratic society that proclaims respect for the dignity of the person as one of the principles inspiring its coexistence, the dissemination of facts that belong to the intimacy of private citizens should not be tolerated, nor should the dissemination of untruthful news be tolerated, not in the sense that they do not exactly coincide with what happened, but in the sense that there has been deployed by...

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who publishes the necessary diligence to ascertain that what is disclosed is not a mere rumor

-Judgments of the Constitutional Court 54/2004, of April 15 and 61/2004, of April 19-.

However, in cases involving minors, constitutional doctrine has granted a scope of super-protection that requires extreme caution regarding the information provided about them, even if it has public interest. Thus, the Constitutional Court has indicated that the legitimate interest of a minor in not having data related to their family or personal life disclosed "seems to impose an insurmountable limit on both freedom of expression and the fundamental right to freely communicate truthful information, without the alleged truthfulness of what is revealed exonerating the media from responsibility for the intrusion into the private life of both minors," even if the news deserves the label of neutral information -Judgment of the Constitutional Court of July 15, 1999" (the underline is ours).

In this same vein, it is worth noting the pronouncement of the Supreme Court in its Judgment 777/2021 of November 11, 2021, (First Chamber, Civil, Rec. 6775/2020):

"In the words of STC 158/2009, of June 29, 2009 (FJ 4):

"It should be recalled that, in accordance with art. 20.4 CE, the freedoms of expression and information have their limit in the respect for the rights recognized in Title I, in the laws that develop it "and, especially, in the right to honor, to privacy, to one's own image, and to the protection of youth and childhood." Likewise, the international norms for the protection of children should not be overlooked (regarding whose interpretative value ex art. 10.2 CE it is unnecessary to insist), and, among them, particularly, the United Nations Convention on the Rights of the Child (ratified by Spain by Instrument of November 30, 1990), which guarantees the right of children to legal protection against arbitrary or unlawful interference in their private life (art. 16), as well as the Resolution of the European Parliament regarding the European Charter of the Rights of the Child, which establishes that "every child has the right not to be the object of unjustified intrusions by a third party into their private life, that of their family, nor to suffer illegal attacks on their honor" (paragraph 29 of § 8 of Resolution A 3-0172/92 of July 8).

"In turn, Organic Law 1/1982, of May 5, on the protection of the right to honor, privacy, and one's own image, after establishing that there will be no illegitimate intrusion in the protected sphere when the holder of the right has given their express consent to that effect (art. 2), specifies next in its art. 3, regarding minors (and incapacitated persons) that their consent must be given by themselves, if their maturity conditions allow it, and, if not, consent must be granted in writing by their legal representatives, who are obliged to inform the Public Prosecutor's Office in advance of the projected consent, and the Judge must resolve if, within eight days, the Public Prosecutor's Office opposes. (...)" Therefore, the media carry out processing of personal data in the exercise of the freedom of information and are responsible for the processing of, among other personal data, the voice of individuals.

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As data controllers, they must comply with the obligations set forth in the GDPR, among which we will highlight, among others, the verification of the existence of a legal basis that legitimizes the processing of personal data, the application of principles related to processing, or the conduct of risk assessments

(Article 24 of the GDPR) and the performance of data protection impact assessments when necessary (Article 35 of the GDPR).

In any processing of personal data, there are risks to the rights and freedoms of individuals arising from such processing that the data controller must identify, assess, and evaluate, for the purpose of implementing technical and organizational measures of all kinds, to prevent or mitigate the materialization of the aforementioned risks. It must be taken into account that, at times, the materialization of risks can have a very significant impact on the rights and freedoms of the data subjects, and the damages can be irreversible and irreparable. Furthermore, the analysis of risks must consider the clearly technological context of the present.

In the current technological context, marked by the exponential development of artificial intelligence and its ability to analyze, identify, and associate voices and images with unprecedented precision, the need to exercise extreme caution in the processing of these personal data is reinforced. Artificial intelligence allows, even from minimal fragments of voice or image, to reconstruct identities, generate detailed profiles, or create hyper-realistic simulations, which significantly increases the risks to the rights and freedoms of individuals.

All of this is in addition to the respect for the principle of data minimization applicable to the manner, means in which the information is provided and disseminated due to the immediate impact on the personal data of an individual. In this way, the data controller will assess, prior to carrying out the processing, that the dissemination of personal data is as non-intrusive as possible, analyzing and implementing, where appropriate, other ways of providing the information (alternative measures) that pose a lower risk to the right to the protection of personal data, including respect for private life. Therefore, the data controller, before carrying out the processing in application of the principle of proactive responsibility (Article 5.2 of the GDPR), must conduct this risk analysis and document it for the specific case in question, also applying the principle of data minimization, for the purpose of adopting, if necessary considering the situation of an individual, the appropriate technical and organizational measures to reconcile the fundamental right to freedom of information with the fundamental right to the protection of personal data.

In this regard, it should be noted that current technology allows for the publication of information, even if it is a video, without being able to identify the participants, so a media outlet could provide the information while being respectful of data protection regulations.

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Technical measures consisting of the use of technical procedures to prevent voice recognition, such as, for example, distortion of such could be sufficient for these purposes, which must be assessed in any case by the data controller.

As we can see, this is not about giving precedence to one fundamental right over another, having to choose which one carries more weight in a specific case, but rather about finding a balance between both to achieve the purpose of the first without undermining the second, and always on a case-by-case basis. The reconciliation of both rights is enshrined by the European legislator in Article 85 of the GDPR.

Consequently, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to ATRESMEDIA, for violation of Article 5.1.c) of the GDPR.

VI

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

The known facts could constitute an infringement attributable to ATRESMEDIA, of Article 5.1.c) of the GDPR, with the scope expressed in the previous Legal Foundations, which, if confirmed, could imply the commission of the infringement classified in Article 83.5, paragraph a) of the GDPR, which under

the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VII

Proposal for sanction for the infringement of Article 5.1.c) of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

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For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In the present case, considering the seriousness of the possible infringement, especially regarding the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the business volume of ATRESMEDIA of 698,710,610 euros for the fiscal year 2023 is considered as a preliminary measure.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, contemplated in the aforementioned provisions. As a preliminary matter, it is estimated that the following circumstances concur:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered (Article 83.2, letter a), of the GDPR). The publication of the personal data of the voices of the participants in the video by ATRESMEDIA in its digital newspaper implies the possibility of immediate and widespread dissemination of the content, which leads to the affected individuals losing control over their personal data.

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Moreover, there are several affected parties due to this processing, at least 3 individuals: victim, physical aggressor, and the one recording.

In this regard, the CJEU ruling of 1/08/2022 in case C-184/20 (OT and Vyriausioji tarnybinės etikos komisija) highlights the amplifying effect of the internet, stating that “102 On the other hand, it is noted that this processing leads to those personal data being freely accessible on the Internet by the general public and, as a result, by a potentially unlimited number of people.”

- The intentionality or negligence in the infringement (Article 83.2, letter b), of the GDPR). It can be considered that ATRESMEDIA's actions were negligent in not ensuring a procedure that guaranteed the protection of personal data in such sensitive circumstances, especially when there is the possibility of distorting the voice in the news to prevent the identification of the individuals speaking. A technique that ATRESMEDIA has used regarding the image of the participants in the video, but not with respect to their voice; despite the fact that, as we have indicated, it is also a piece of personal data to which data protection regulations apply.

- The categories of personal data affected by the infringement (Article 83.2, letter g), of the GDPR). Although "Special categories of personal data" as defined by the GDPR in Article 9 have not been affected, the personal data referred to in the actions (the voice of the minor participants in the video) has a particularly sensitive nature, as it allows for the prompt identification of the person and increases the risks to their privacy.

Furthermore, the following aggravating factors are considered for the purpose of graduation:

- Any previous infringement committed by the controller or processor (Article 83.2, letter e, of the GDPR). This Agency has a sanctioning procedure (...) in which, on July 7, 2023, a "Resolution of termination of the procedure due to voluntary payment" was issued after ATRESMEDIA availed itself of the two reductions provided for in the Initiation Agreement and paid €30,000. In the aforementioned sanctioning procedure, ATRESMEDIA was charged with an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

- The impact on the rights of minors (Article 76.2, letter f), of the LOPDGDD). ATRESMEDIA processed personal data belonging to minors, so, given their special vulnerability, it can be considered that an infringement of their right to personal data protection would have particularly significant implications and consequences.

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The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 5.1.c), initially allows for the imposition of an administrative fine of €50,000 (fifty thousand euros).

VIII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.c) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR. Thus, the responsible entity may be required to adjust its actions to comply with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures must be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, the resolution adopted may require ATRESMEDIA to adopt the following measures within a period of 3 MONTHS, starting from the date of effectiveness of the resolution concluding this procedure:

- To demonstrate the adoption of the necessary measures to ensure compliance with the provisions of Article 5.1.c) of the GDPR, to prevent the excessive publication or dissemination of personal data and, in particular, of minors.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to lead to the opening of a further sanctioning administrative procedure.

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It is also reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the pertinent measures to cease the conduct or to correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

IX

Provisional Measure

Article 69.1 and 2 of the LOPDGDD provides as follows:

“1. During the preliminary investigation actions or the initiation of a procedure for the exercise of the sanctioning power, the Spanish Agency for Data Protection may reasonably agree on the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Agency for Data Protection considers that the continuation of the processing of personal data, its communication or international transfer would cause a serious detriment to the right to personal data protection, it may order the controllers or processors to block the data and cease its processing and, in the event of non-compliance with these mandates, proceed to immobilize it. (...)”

In this case, within the framework of the preliminary investigation actions mentioned in section four of "Facts," it was agreed to require ATRESMEDIA to, as a precautionary measure, either withdraw the video in question or distort the voices of the participants in it.

The analyzed facts pose a high risk to the guarantees and freedoms of the affected individuals, such that the continuation of the processing entails a very serious and irreparable detriment to the rights of the affected minors. Therefore, the provisional suspension of the processing is the only measure that can be adopted to safeguard the Fundamental Right to Data Protection, being, moreover, the least harmful, burdensome, and proportional for ATRESMEDIA.

From these premises and in order to safeguard and guarantee the rights and freedoms of the affected individuals, in accordance with the provisions of Article 69 of the LOPDGDD, it is deemed appropriate to confirm the provisional measure agreed upon during the preliminary investigation phase.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A., with NIF A78839271, for the presumed infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

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SECOND: CONFIRM the provisional measure imposed on ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A., with NIF A78839271, consisting of the removal of the video in question or distortion of the voices of the participants therein, in accordance with the provisions of Article 69 of the LOPDGDD. The provisional measure shall be maintained until the final resolution of the procedure, at which point it shall be confirmed, modified, or lifted.

THIRD: APPOINT A.A.A. as instructor and B.B.B. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: INCORPORATE into the file, for evidentiary purposes, the documents obtained and

generated by the General Subdirectorate of Data Inspection in the actions prior to the initiation of this sanctioning procedure.

FIFTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be an administrative fine of €50,000 (fifty thousand euros), without prejudice to what results from the instruction.

SIXTH: NOTIFY this agreement to ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A., with NIF A78839271, granting a hearing period of ten business days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €40,000 (forty thousand euros), resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €40,000 (forty thousand euros), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at €30,000 (thirty thousand euros).

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In any case, the effectiveness of either of the two reductions mentioned will be conditioned upon the withdrawal or renunciation of any action or remedy in the administrative pathway against the sanction. In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (€40,000 or €30,000), you must make the payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

Additionally, you must send the proof of payment to the General Sub-Directorate of Inspection of the sanction to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es) and the Electronic Headquarters (sedeae@pd.gob.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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SECOND: On April 10, 2025, ATRESMEDIA proceeded to pay the sanction in the amount of €30,000,

making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility concerning the facts referred to in the initiation agreement and its legal qualification.

THIRD: The previously transcribed initiation agreement indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

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Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

FOURTH: Likewise, in the transcribed initiation agreement, it was indicated that in the framework of the preliminary investigation actions, it was agreed to require ATRESMEDIA to, as a precautionary measure, proceed to withdraw the video in question or to distort the voices of the participants in it. In accordance with the analysis that was carried out, considering the high risk to the guarantees and freedoms of the affected parties, and in order to safeguard and guarantee the rights and freedoms of the affected parties, it was deemed appropriate to confirm the aforementioned provisional measure agreed upon during the preliminary investigation phase, in accordance with the provisions of Article 69 of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

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3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation.

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 30,000.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, ATRESMEDIA has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions shall be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their form of initiation. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure shall decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts yields a total amount of 50,000.00 euros.

After having proceeded, ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A. to make prompt payment and acknowledge responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in a final amount of 30,000.00 euros.

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The effectiveness of the aforementioned reductions is conditioned, in any case, on the withdrawal or renunciation of any action or appeal in the administrative pathway.

SECOND: DECLARE the termination of the procedure EXP202405322, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: ORDER ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A. to notify the Agency within 3 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: CONFIRM, elevating it to definitive, the provisional measure imposed on ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A., consisting of the suspension of the processing of personal data subject to this sanctioning procedure by removing the video in question or distorting the voices of the participants therein.

FIFTH: NOTIFY this resolution to ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A.

SIXTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution will be final in the administrative pathway and fully enforceable from the date of its notification. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeaepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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